

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, JUNE 03, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CURTIS T. WALKER v. SOLANO COUNTY OFFICE OF EDUCATION
Case No. CU24-05338**

Motion to Set Aside or Vacate Dismissal

TENTATIVE RULING:

Plaintiff to appear.

The order dismissing the action for failure to prosecute is vacated. The case is reinstated to active status.

This case was reassigned to Department 8 on March 17, 2026.

This suit was filed on July 16, 2024, by Plaintiff CURTIS T. WALKER in pro per. The complaint shows a mailing address of 503 Flicker Avenue, Davis, California. On July 17, 2024, Plaintiff signed acknowledgment of receipt of an Amended Notice of Case Management Conference One scheduled for February 3, 2025.

Plaintiff caused service of the summons and complaint on Defendant SOLANO COUNTY OFFICE OF EDUCATION on September 6, 2024.

Following service of the summons and complaint, Plaintiff failed to take any steps to advance prosecution of the action.

Plaintiff failed to appear at the first case management conference on February 3, 2025. An Order to Show Cause was issued and served to 503 Flicker Avenue in Davis on

February 5, 2025. The hearing on the Order to Show Cause was scheduled for July 21, 2025. The file does not show the notice as being returned as undeliverable.

On July 21, 2025, Plaintiff failed again to appear for the hearing on the Order to Show Cause. Sanctions were imposed and the matter was set for a further Order to Show Cause regarding failure to appear on March 2, 2026. However, the file does not reflect preparation or service of an Order to Show Cause or the minute order by the court.

On March 2, 2026, the case was called by Department 22 and dismissed following Plaintiff's failure to appear.

Despite having no contact with the court for 18 months, Plaintiff coincidentally filed a declaration on March 5, 2026, indicating a variety of reasons why he had failed to prosecute the action.

Plaintiff subsequently filed a motion to vacate the dismissal based upon medical responses, homelessness and financial hardship. He was directed to file a supplemental declaration with evidence to support his claims that he was medically incapacitated and therefore unable to prosecute the action.

The court finds that the documentation submitted by Plaintiff does not actually support the motion to set aside the dismissal and Plaintiff's inability to take necessary action to prosecute subsequent to its filing in 2024. Other than a brief hospitalization, the documentation does not establish that Plaintiff was unable to prosecute this action based upon medical needs. His other medical conditions including psychological and substance abuse treatment needs are not a basis for setting aside dismissal. While the court appreciates the difficulty Plaintiff faces with unstable housing, he received mail through a third party, failed to notify the court of any change in address, and failed to timely pick up mail from a third party.

Plaintiff's request for dismissal is set aside solely because it does not appear the court provided notice to Plaintiff of the March 2, 2026, hearing date or that the matter could be subject to dismissal if he failed to appear.

The court intends to establish case management parameters. Should Plaintiff fail to appear for the hearing, the court will understand that Plaintiff has abandoned his request to vacate the dismissal and is not seeking reinstatement of this action.
